SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	
2. CONTRACT NUMBER	
3. AWARD/EFFECTIVE DATE	
4. ORDER NUMBER	
5. SOLICITATION NUMBER	N6264926QB001
6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL: a. NAME	Yoko Yamaguchi
b. TELEPHONE NUMBER *(No collect calls)*	046-816-8408
8. OFFER DUE DATE/ LOCAL TIME	04 Mar 2026 10:00 AM

9. ISSUED BY CODE N62649

NAVSUP FLT LOG CTR YOKOSUKA
PSC 473 BOX 11, FPO AP 96349-1500
FPO, AP 96349-1500
UNITED STATES
Yoko Yamaguchi, Email: yoko.yamaguchi.ln@us.navy.mil Telephone: 046-816-8408

10. THIS ACQUISITION IS [X] UNRESTRICTED OR [ ] SET ASIDE: ____ % FOR:
[ ] SMALL BUSINESS
[ ] HUBZONE SMALL BUSINESS
[ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
[ ] WOMEN-OWNED SMALL BUSINESS (WOSB)
[ ] ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
[ ] 8(A)
NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 488390
SIZE STANDARD:

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED [ ] SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) [ ]

13b. RATING

14. METHOD OF SOLICITATION [X] REQUEST FOR QUOTE (RFQ) [ ] INVITATION FOR BID (IFB) [ ] REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO CODE

See Continuation

16. ADMINISTERED BY CODE

17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY CODE

[ ] **17b.** CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Continuation				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA
See Continuation

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

[X] 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REFERENCE ____ OFFER DATED ____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Continuat

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*	
30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

Solicitation/Contract Form Continuation

Bunkering and de-bunkering service to support Fuel CFAY US Naval Base Japan

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

CONTRACT ADMINISTRATION

Contract Administration Appointments and Duties: In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

Procuring Contracting Officer (PCO) is responsible for:

(1) All pre-award duties such as solicitation, negotiation and award of contracts.
(2) Any information, questions, or data during the pre-award stage of the procurement.
(3) Freedom of information inquiries;
(4) Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
(5) Arranging the post award conference (See FAR 42.503-1).
(6) Acting as assessing official.

Point of Contact (POC):

Maria Crispina Mallari
Contracting Officer, Ashore Division
Contracting Department (Code 212)
NAVSUP Fleet Logistics Center (FLC) Yokosuka
Commercial 046-816-6835/DSN: 315-243-6835
Work Cell Phone: 090-1467-6360
E-mail: mariacrispina.c.mallari2.ln@us.navy.mil
(Local)NAVSUP FLC Yokosuka, Box 11, U.S. Naval Base Yokosuka
Tomaricho, 1-banchi, Yokosuka-shi, Kanagawa-ken 238-0001 Japan

Contract Administration Office (CAO) is responsible for:

The matters specified in the FAR 42.302 and DFARS 242.302 except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein. The PCO retains the CAO function under this contract. Those functions which cannot be retained are not expected to apply during performance of this contract. Should circumstances changes, these functions will be delegated to DCMA as applicable.

CAO: NAVSUP FLC Yokosuka Code212

Ordering Officer (s) (OO) is responsible for:

(1) Issuing Task Orders in accordance with the ordering procedures set forth in the contract;
(2) Obligating the funds by issuance of Task Orders;
(3) Authorization to begin performance;
(4) Monitoring of total price of Task Orders issued; and
(5) Placing oral orders.

The Ordering Officer (s) are responsible for issuing and administering any orders placed hereunder. Ordering Officer (s) may negotiate revisions/modifications to orders, but only within the scope of this contract. Ordering Officer (s) have no authority to modify any provision of this basic contract. Any deviation from the terms of the basic contract must be submitted to the Procuring Contracting Officer (PCO) for contractual action. Ordering Officer (s) may enter into mutual no-cost cancellations of orders under this contract and may reduce the scope of orders/tasks, but Terminations for Convenience or Terminations for Default shall be issued only by the PCO.

The following individuals are designated as authorized Ordering Officer:

Ordering Officers: TBD

Contracting Officer's Representative (COR) is responsible for:

(1) Liaison with personnel at the Government installation and contractor personnel on site;
(2) Technical advice/recommendations/clarification on the specifications,
(3) Monitoring contractor performance to assure that corrective action is being taken;
(4) Identifying contractor noncompliance with any of the terms and conditions specified in the order to the Contracting Officer;
(5) Security, Safety, and Environmental requirements on Government installations;
(6) Certificating invoices for payment in writing, acceptance/rejection of the deliverables;
(7) Approving and coordinating for working in and around existing buildings;
(8) Serving as a point of contact through whom the contractor can relay his questions and problems of a technical nature to the Contracting Officer;
(9) Inspection and acceptance of the services performed by the contractor; and
(10)Alerting the PCO, as appropriate, to any potential problems which may affect performance schedules.
(11) Documenting the annual CPARS report as an assessing official representative.

The following individuals are designated as authorized COR :

COR: TBD

NOTE:
It is emphasized that only the PCO has the authority to modify the terms of the contract, therefore, in no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the contract between the contractor and any other person be effective or binding on the Government. When/if, in the opinion of the Contractor, an effort outside the existing scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action must be taken unless the PCO has issued a contractual change.

When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract, the Contractor shall promptly notify the Contracting Officer in writing. No action shall be taken by the Contractor under such direction until the Contracting Officer has issued a modification to the contract or has otherwise resolved the issue.

Invoice Instructions: Invoice Instruction will be provided at each task order level.

Payment Office is responsible for making payment of proper invoices after acceptance is documented.

PERFORMANCE BASED SERVICE CONTRACT (PBSC) :

The Government acquires the services through this contract based on PBSC concept.

Quality Assurance Surveillance Plan (QASP), which are Contract Performance Objectives, Performance Standards and Assessment Methods, is described below.

During the contract performance, the Contractor will be evaluated on its ability to comply with applicable license, laws and regulations of Japan such as safety and environmental to conduct the tanker vessels or barges to carry bulk petroleum products. The QASP provides the methodology by which Contractor's performance will be monitored by the COR to determine compliance with standard performance objectives. The contract performance objectives, performance standards, assessment methods, and acceptable quality level are described below in further detail.

Performance Objective	Performance Standards	Assessment Methods	Acceptable Quality Level
1. Comply with the existing Japanese safety and environmental laws and regulations to carry the required clean petroleum products	1. The Contractor shall avoid any mishap (s)/accident(s) during the operation. Contactor barges shall be kept clean and	1. (30% random inspection). The COR will monitor each selected operation in terms of	

as referenced 1.2 (b), and law and regulations for oil spills as referenced 1.6 of the PWS.	clear of debris and residue. The Contractor will experience zero safety accidents, releases or spills during each year of contract performance.	the safety requirements. The COR will also monitor and document any safety accidents or oil spills.	100%
2. Maintain and follow written Quality Control Plan (QCP) to ensure quality service is provided throughout the term of the contract.	2. The Contractor shall follow and work to written procedures when performing fueling at the terminal / fueling source and destination at the customer location.	2. (30% random inspection). The COR will inspect in terms of delivery schedule requirements.	100%
3. Schedule compliance	3. The Contractor shall complete all the requirement within the time of operation required in each task order.	3. (30% random inspection). The COR will inspect in terms of delivery schedule requirements.	100%
4. Transaction compliance Loss of or damage to Government Property and/or the Government Furnished Property.	4. The Contractor shall comply with all the Task Order requirements and is responsible for preventing loss or damage to the Government Property. Should any such loss or damage occur, the Contractor must provide all required reports and documentation.	4. (30% random inspection). The COR will monitor and record if the contractor has failed, lost or damaged the Government Property in each operation.	100%

Evaluation and Rating:

The COR will randomly monitor and inspect approximately 30% of the Contractor's performance on all bunkering and de-bunkering operations placed by Task Order. At a minimum, the COR will conduct two inspections per month. The COR will report and rate the Contractor's performance on "Contractor's Performance Evaluation Sheet." When the Contractor performs in compliance with the performance standards by meeting more than 90% quality level, the Contractor's performance will be rated "Acceptable." In case any inconsistency or deficiency is found, the COR will record it on the form and attach any related document to the form. When it is determined the quality level is less than 90%, the performance will be rated as "Unacceptable." All the performance records provided to the Contractor for the operations monitored and inspected will be recorded. The COR will review those evaluation records and prepare a Contractor's Performance Evaluation Sheet in which the Contractor's performance will be rated using FAR 42.1503 Table 42-1.

Note: The COR will assess the overall rating based on all the four (4) performance objectives above with comments. All four (4) factors are equally important and the comment from the COR is mandatory. The COR will maintain a complete QASP file. All records will be retained and considered when deciding if it is in the best interest of the Government to extend the term of the contract or enter into a new contract.

COMMERCIAL ITEMS: This is a solicitation for commercial items prepared in accordance with the information in FAR Subpart. 12, using Simplified Acquisition Procedures for commercial items found at FAR 12.201-1, and is, supplemented with the additional information for commercial items included in this notice.

TYPE OF CONTRACT

This is a performance based, Indefinite Delivery Indefinite Quantity (IDIQ) Single Award Contract with Firm-Fixed-Prices Line Items to support Fuel Bunker and De-bunker Service for U.S. Fleet Activities Yokosuka.

Minimum quantity for fuel is 1,000 barrels.

Maximum quantity is specified for each CLIN.

(Maximum quantity :790,000 barrels (Base Year I: 395,000 barrels and Base Year II: 395,000 barrels)

Total quoted amount for 0001 to 0017 $______________________________ JPY___________________________________

Total quoted amount for 1001 to 1016 $______________________________ JPY___________________________________

Grand quoted amount Total $______________________________ JPY___________________________________

Allowed Per Order

Minimum: 1,000 Barrel
Maximum: 790,000 Barrel

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Bunkering Service MAX QUANTITY 395,000 Barrel See below PWS paragraph 1.3 (a) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	395,000	Barrel		
0002	De-bunkering Service MAX QUANTITY 30,000 Barrel See below PWS paragraph 1.3 (a) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	30,000	Barrel		
0003	Detention Charge MAX QUANTITY 30 hours See below PWS paragraph 1.3 (b) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	30	Hours		
0004	Cancellation of Bunkering, De-bunkering MAX QUANTITY 3 Job Under CLIN 0001 and 0002 when the conditions fell with the scope set forth in 1.3 (c) and other related paragraph of PWS. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	3	Job		
0005	Cancellation of Oil Boom Service MAX QUANTITY 1 Job Under CLIN 0007 and 0008 when the conditions fell within the scope set forth in 1.3 (e) and other related paragraph of PWS. (Base Year I with performance 10 April 2026 through 09 April	1	Job		

	2027) Pricing Arrangement: Firm Fixed Price				
0006	Return Charge MAX QUANTITY 30 Job See below PWS paragraph 1.3 (d) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	30	Job		
0007	Oil Boom Service MAX QUANTITY 50 Job See below PWS paragraph 1.3 (e)(i) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	50	Job		
0008	Oil Boom Service with DONUT FENDERS MOVING OPERATIONS MAX QUANTITY 10 Job See below PWS paragraph 1.3 (e)(ii) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	10	Job		
0009	RENTAL OF EXTRA HOSES MAX QUANTITY 1,200 Meter See below PWS paragraph1.3 (f) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	1,200	Meter		
0010	FOR 0800-1700 HOURS OIL, OILY SUBSTANCE REMOVAL SERVICES MAX QUANTITY 2 Hours See below PWS paragraph1.3 (g) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	2	Hours		
0011	FOR 0600-0800, 1700-2200 HOURS MAX QUANTITY 2 hours OIL, OILY SUBSTANCE REMOVAL SERVICES. See below PWS paragraph1.3 (g) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	2	Hours		
0012	FOR 2200-0600 HOURS MAX QUANTITY 2 Hours OIL, OILY SUBSTANCE REMOVAL SERVICES . See below PWS paragraph1.3 (g) and other related paragraph. (Base Year I with performance 10 April 2026 through 09 April 2027)	2	Hours		

	Pricing Arrangement: Firm Fixed Price				
0013	DISPOSAL AND ABSORBENTS MAX QUANTITY 2 Package The Contractor shall provide oil, oily substance removal services, including disposal of the retrieved absorbents. (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	2	Package		
0014	Cancellation of Oil, Oily Substance Removal Services MAX QUANTITY 1 Job (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	1	Job		
0015	TANK CLEANING CHARGE See below PWS paragraph 1.3 (h) and other related paragraph MAX QUANTITY 29 Job (Base Year I with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	29	Job		
0016	MULTIPLE BUNKERING SERVICE MAX QUANTITY 5,000 Barrel See below PWS paragraph 1.3 (i) and other related paragraph. (Base Year I with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	5,000	Barrel		
0017	MINIMUM GUARANTEE MAX QUANTITY 1 Lot This Contract Line Item Number (CLIN) shall only be invoiced in the event the contract has not ordered sufficient bunkering/debunkering services totaling USD 1,000.00 or equivalent Japanese YEN per applicable Budget Exchange Rate (BER) and will only be billable within the first year of the contract. Pricing Arrangement: Firm Fixed Price	1	Lot		
1001	Bunkering Service MAX QUANTITY 395,000 Barrel See below PWS paragraph 1.3 (a) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	395,000	Barrel		
1002	De-bunkering Service MAX QUANTITY 30,000 Barrel See below PWS paragraph 1.3 (a) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April	30,000	Barrel		

	2028) Pricing Arrangement: Firm Fixed Price				
1003	Detention Charge MAX QUANTITY 30 hours See below PWS paragraph 1.3 (b) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	30	Hours		
1004	Cancellation of Bunkering, De-bunkering MAX QUANTITY 3 Job Under CLIN 1001 and 1002 when the conditions fell with the scope set forth in 1.3 (c) and other related paragraph of PWS. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	3	Job		
1005	Cancellation of Oil Boom Service MAX QUANTITY 1 Job Under CLIN 1007 and 1008 when the conditions fell within the scope set forth in 1.3 (e) and other related paragraph of PWS. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	1	Job		
1006	Return Charge MAX QUANTITY 30 Job See below PWS paragraph 1.3 (d) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	30	Job		
1007	Oil Boom Service MAX QUANTITY 50 Job See below PWS paragraph 1.3 (e)(i) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	50	Job		
1008	Oil Boom Service with DONUT FENDERS MOVING OPERATIONS MAX QUANTITY 10 Job See below PWS paragraph 1.3 (e)(ii) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	10	Job		
	RENTAL OF EXTRA HOSES MAX QUANTITY 1,200 Meter				

1009	See below PWS paragraph1.3 (f) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	1,200	Meter		
1010	FOR 0800-1700 HOURS OIL, OILY SUBSTANCE REMOVAL SERVICES MAX QUANTITY 2 Hours See below PWS paragraph1.3 (g) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	2	Hours		
1011	FOR 0600-0800, 1700-2200 HOURS MAX QUANTITY 2 hours OIL, OILY SUBSTANCE REMOVAL SERVICES. See below PWS paragraph1.3 (g) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	2	Hours		
1012	FOR 2200-0600 HOURS MAX QUANTITY 2 Hours OIL, OILY SUBSTANCE REMOVAL SERVICES . See below PWS paragraph1.3 (g) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	2	Hours		
1013	DISPOSAL AND ABSORBENTS MAX QUANTITY 2 Package The Contractor shall provide oil, oily substance removal services, including disposal of the retrieved absorbents. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	2	Package		
1014	Cancellation of Oil, Oily Substance Removal Services MAX QUANTITY 1 Job (Base Year II with performance 10 April 2026 through 09 April 2027) Pricing Arrangement: Firm Fixed Price	1	Job		
1015	TANK CLEANING CHARGE MAX QUANTITY 29 Job See below PWS paragraph 1.3 (h) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	29	Job		
	MULTIPLE BUNKERING SERVICE MAX QUANTITY 5,000 Barrel				

1016	See below PWS paragraph 1.3 (i) and other related paragraph. (Base Year II with performance 10 April 2027 through 09 April 2028) Pricing Arrangement: Firm Fixed Price	5,000	Barrel		

Continuation of Description

PERFORMANCE WORK STATEMENT (PWS)

BUNKER/DE-BUNKER TRANSPORTATION SERVICE

1.0 SCOPE OF CONTRACT

1.1 General:

(a) This contract is for the fuel bunkering services to U.S. Government owned or chartered vessels or Foreign Government owned vessels at the Tokyo Bay area in Japan.
(i) Requesting activity is hereinafter "Customer".
(ii) Contractor's vessels or barges are hereinafter "Contractor".

1.2 Technical Requirement:

(a) The Contractor shall have necessary crew and equipment to accomplish the bunkering/de-bunkering operation.
(b) The Contractor shall be licensed to carry the following clean petroleum products: NATO F76 and F44 (JP5). Such a ship shall comply with the existing Japanese safety and environmental laws and regulations.
(c) The Contractor shall use a ship with cargo tanks that are appropriately coated, are prepared to comply with Appendix A, and are otherwise acceptable to receive the cargo identified in the Customer's order. Barges offered for consideration that are constructed of either stainless steel or carbon steel that has been epoxy coated with a non-coal tar-based grade of epoxy, or uncoated mild steel tanks are acceptable for performance consideration as stated in this contract. The use of copper and copper alloys (brass, bronze, etc.) in vessel compartments, pipelines, heating coils, and fittings is not permitted.
(d) The Contractor shall provide suitable and operable barge(s) and be capable of providing equivalent to 3 barges with 500.00 kl tank capacity each and 3 barges with 300.00 kl tank capacity each per task order to cover the maximum requirement of 2,400 kl delivery per day.
(e) The Contractor shall be equipped with suitable hoses for the operations. Total length of the hoses per operation shall not exceed 54 meters (177.12 feet). (See paragraph 1.3(g) below for extra hoses)
(f) The ship provided by the Contractor pursuant to this contract is subject to inspection and acceptance by a representative of the Customer and the Commander Fleet Activities Yokosuka (hereinafter referred to as "CFAY, the rest remains as CFAY) Hakozaki fuel terminal prior to loading or discharging of cargo.

1.3 Description of Services:

(a) Operation Charge for Bunkering/De-bunkering: The Contractor shall perform the bunkering or de-bunkering services after receipt of an oral order, which will be confirmed via written task order issuance later. Actual operating performance means when the Contractor's vessel/barge has already been dispatched from her ordinary mooring place. The Contractor shall provide their vessel/barge information such as her name and loading schedule prior to pre-loading operation. The minimum barrels per order is 1000bbls.
(i) For the basic bunkering evolution, the contractor shall be paid for transportation service at the basic freight.
(ii) In the event that the Customer orders less than the minimum order quantity of 1,000bbls, the Contractor shall be paid for 1,000bbls.
(iii) For the basic de-bunkering evolution, the Contractor shall be paid for transportation service at the basic freight.
(iv) in the event of de-bunkering evolution order less than the minimum order quantity of 1,500bbls, the contractor shall be paid for 1,500bbls
(v) Fuel offloads are the responsibility of the customer who will compensate the Contractor for all de-bunkering costs and all de-bunkering costs (defuel transportation and handling).

(b) Detention Charge for Bunkering/De-bunkering: Detention is the time lost as a result of stoppage, or inability to start bunkering or de-bunkering of cargo due to causes beyond control and without fault or negligence of the Contractor. Delays caused by inclement or severe weather will result in no charge or penalties to either the Contractor or the Government.
(i) The Customer will compensate the Contractor for the fixed detention
charge when detention exceeds 120 minutes from the Customer's request deliver time. In case barge(s) is assigned across multiple days, 120 minutes commences from the Customer's requested delivery time each day.
(ii) For purpose of shortening the amount of operation time, multiple barges
are scheduled at the same time in the same place for delivering, in which case barges are not in the operation should not be the objected to detention. The connection and disconnection time of barge hoses between multiple barges and/or any time lost when the Customer needs to stop the operation and open/close oil booms due to entering/releasing the Contractor's barge will not be assessed as detention charge. In case multiple barges are assigned at the same time, 120 minutes commences when the previous barge departs and the oil boom is reconnected.
(iii) Detention will not be assessed outside of normal fuel operation hours of
sunrise to sunset as per CFAYINST for bunkering/de-bunkering operations in Yokosuka Naval base.
(iv) When the task order is cancelled during a detention period exceeding 120
minutes for bunkering, the Customer will pay detention charge in addition to return charge.

(c) Cancellation Charge for Bunkering/De-bunkering: Generally the Ordering/Alternate Ordering Officer has an authority to cancel an order either orally or in writing at any time prior to the scheduled pre-loading services. If the initial order is confirmed in writing, the Ordering/Alternate Ordering Officer will issue a task order modification for cancellation. This cancellation charge will not be assessed and paid by the Customer for any cancel beyond the control and without the fault or negligence of the Customer. Examples of such causes include acts of God or of the public enemy, fires, floods, epidemics and severe weather. The Customer shall pay the cancellation charge per task order without regard to the size and/or the number of barges utilized.
(i) If the task order for bunkering or de-bunkering service is cancelled before the Contractor's barge leaves its regular berth (ordinary mooring place), neither the basic freight nor cancellation charge will be paid to the Contractor.

(ii) When the task order for bunkering or de-bunkering service is cancelled after the Contractor's barge already leaves its regular berth (ordinary mooring place) but before start loading fuel, no basic freight applies but the Customer will only pay cancellation charge to the Contractor.
(iii) When the task order for bunkering service is cancelled after the
Contractor's barge already starts fuel pre-loading or anytime after completed fuel loading at the CFAY Hakozaki fuel terminal, neither the basic freight nor cancellation charge shall be paid but the Customer will compensate for return charge to the Contractor.

(d) Return Charge: Returned freight means bunkers that are returned to the loading point. Bunkers which are returned to other points are considered to be a new transportation. The Customer shall pay the return charge per task order without regard to the size and/or the number of barges utilized.
(i) No matter the quantity of product returned, the Customer shall pay a flat fee of one job per CLIN for return charge.
(ii) In the event that the returning barge will be continuous utilized for next
scheduled fueling evolution, no return charge will be assessed.

(e) Oil Boom Service and Oil Boom with Donut Fenders Moving Operations:
(i) Before commencing bunkering, de-bunkering or other related operations , the Ordering/Alternate Ordering Officer will issue an order for the oil boom services. When the Contractor receives such an order, the Contractor shall prepare and install oil boom around the entire vessel being loaded with the contracted barge(s). The Contractor shall keep sufficient quantity of oil absorbent/dispersant and spill-fighting resources onboard the oil boom installation boat, which shall be manned sufficiently to perform the required oil boom services and stay in the vicinity of the site during the operation. Upon completion of the operations, the Contractor shall remove the boom. If the task order for oil boom services is cancelled before the Contractor's boat leaves its regular berth, no cancellation charge will be paid. When the Contractor already dispatched the boat for installation of, or installed, oil boom, the Customer will compensate for the fixed cancellation charge to the Contractor. Requirements to install oil booms for MSC operated/controlled ships for operations. This does not include bunkering/de-bunkering services, and orders by MSC to perform clean-up operations within the confined waters.
(ii) When Ordering/Alternate Ordering Officer requests, the Contractor shall move two MSC owned or the Contractor owned donut fenders to the outboard of the designated ship using oil boom installation boat said set forth in 1.3(e)(i). When MSC owned donut fenders are used, the Contractor shall move the fenders back to the original position after bunkering/de-bunkering operations. Before the required bunkering/de-bunkering operations, MSC shall place the donut fender in close vicinity of the said ship. When the order is cancelled after the Contractor's barge already leaves its regular berth and/or begins moving donut fenders, the Customer will compensate for the fixed cancellation charge to the Contractor.

(f) Rental of Extra Hoses: The Contractor's ship shall be equipped with suitable hoses for the operations. When the extra hoses are required, the total length of the hoses per operation shall not exceed 54 meters (177.12 feet).

(g) **Oil/Oily Substance Removal Services**: When an oil boom is in place around a ship in support of operations, and when the Ordering/Alternate Ordering Officer issues an order to the Contractor that oil/oily substance response actions be taken within the oil boom confined area, the Contractor shall commence the action immediately. Such action is to be done using an oil-retrieving boat manned with a minimum of three (3) laborers. Oil removal operations shall utilize oil absorbents, (Package: 100 sheets of oil absorbents 65 x 65cm, approx. 17Kg in total). Any oil/oily substance response action shall be terminated immediately upon direction of the Ordering/Alternate Ordering Officer. When the disposal of oil/oily substance and absorbents is ordered, the Contractor shall perform the service in accordance with applicable local law and regulation.

(h) **Tank Cleaning**: Tank cleaning and gas freeing of the Contractor's ship before the bunkering/de-bunkering operation are the responsibility of the Contractor anytime during the contract period. The CFAY Hakozaki fuel terminal representative will inspect tank(s) prior to loading and certify that the product loaded is clean. However, the Government may require the contractor to clean the tank if the Government determined the contractor has provided unclean cargo or the incorrect cargo type, refer to Appendix A. In those scenarios, the contractor shall conduct tank cleaning as required by the Government.

(i) **Multiple Bunkering Service**: The Contractor shall perform the multiple bunkering services after receipt of an oral order, which will be confirmed via written task order issuance later. The multiple bunkering performance means when the Contractor's vessel/barge already dispatched from her ordinary mooring place and load multiple ships/barges regardless of fuel quantity with one order. If the returned freight has occurred, return charge will compensate to the Contractor as set forth in (d). Also the cancellation charge set forth in (c) will apply in case the task order is cancelled. The Contractor shall provide its vessel/barge information such as her name, capacity and pre-loading schedule prior to the scheduled commencement services.

1.4 Duties and Responsibilities of the Parties:

(a) When providing services in response to orders issued pursuant to this contract, the Contractor and/or the Contractor's representative shall be responsible for:
(i) Compliance with all Japanese laws and regulations, including environmental laws, for the care handling storage and transportation by water of petroleum products.
(ii) Attend each fuel operation at the place of delivery and support the coordinating of smooth operations. S/he understands bunkering/de-bunkering procedures and forwards all notices to the FLC fuel terminal such as commencement and termination time of the operation, and duration of the operation is established.
(iii) Providing a ship that arrives at the CFAY Hakozaki fuel terminal for loading or at the Customer's ship for de-bunkering operation in clean, gas-free condition, ready for internal inspection by a representative of the CFAY Hakozaki fuel terminal or the Customer.
(iv) Providing effective connections such as attachments, couplings, extra hoses, and reducers with the manifold pipes of the Contractor's ship for loading and discharging of the cargo.
(v) Invoice(s) must issue to the FLC fuel terminal by task orders. Each invoice should include all proper information based on the requirements of FAR 52.232-25 Prompt Payment (Jul 2013).

(b) The FLC fuel terminal will be responsible for:
(i) Issuing task orders including oral orders.
(ii) Providing all cargo (fuel to be loaded for bunkering services).

(iii) Handling ship's lines at the dock in loading or discharging operations.

For the Contractor's information purposes, the following is provided:

Cargo tank cleaning, gas-freeing, or drop/strip is not required as a matter of routine preparation when going from like-cargoes to like-cargoes such as:

(1) JP5 to JP5
(2) F76 to F76
(3) JP5 to F76

The Contractor's ship, which previously carried "Palm Oil," cannot be used for this contract unless the Contractor obtained an approval from the Government for use of such vessels under the contract.

1.5 Berth Information:

Berth	Maximum Ship's LOA (feet)	Maximum Ship's Beam (feet)	Maximum Ship's Draft (feet)	Maximum Ship's DWT (tons)	Type of Manifold (inch)	Type of Manifold (connection)
Yokosuka (Berth 2)	567	65	34	10,000	Various *(1)	Various *(1)
Yokosuka (Berth 3)	567	85	34	10,000	Various *(1)	Various *(1)
Yokosuka (Berth 6)	844	110	36	46000	Various *(1)	Various *(1)
Yokosuka (Berth 7)	690	108	36	46000	Various *(1)	Various *(1)
Yokosuka (Berth 8)	636	105	39	46000	Various *(1)	Various *(1)
Yokosuka (Berth 9)	636	105	39	46000	Various *(1)	Various *(1)
Yokosuka (Berth 12)	1092	252	41	103000	Various *(1)	Various *(1)
Yokosuka (Berth 13)	360	30	30	6,100	Various *(1)	Various *(1)
Yokosuka (Harbor Master Pier - West)	690	108	36	46000	Various *(1)	Various *(1)
Yokosuka (Harbor Master Pier - East)	690	108	36	46000	Various *(1)	Various *(1)

Hakozaki (North Dock - 244)	590.5	N/A	32.8	48000	8 (ANSI) 12 (JIS)	Loading Arm Loading Arm
Hakozaki North Dock - 246)	657.2	N/A	34.2	48000	8 (ANSI) 12 (JIS)	Loading Arm Loading Arm
Hakozaki (Canal Dock)	150	20	13	700	8 (ANSI)	Loading Arm
Yokohama (North Pier B)	460		23		Various	Various *(1)
Yokohama (North Pier D)	250		25		Various	Various *(1)
Yokohama (North Pier E)	600		30		Various	Various *(1)
Yokohama (North Pier F)	500		30		Various	Various *(1)

Various *(1) Bunker barge will moor alongside vessel berthed at pier. Connection type varies by vessel class.

1.6 Regulation/Instruction for Oil Spills:

When fuel spills occurred during operations, the Contractor shall commence action to remove and clean-up the spilled oil immediately. The Contractor is responsible for cleaning up the spills that occur as a result of the contractor's fault; if such spills damage U.S. Government property, it is responsible for reimbursing the Government for the cost of the spilled fuel. The Contractor shall comply with the following law and regulations as to oil spillage:

(i) Japanese Environmental Governing Standards (JEGS), Chapter 18,

Spill Prevention and Response Planning issued by U.S. Forces Japan.

(ii) Law Relating to the Prevention of Marine Pollution and Maritime Disaster

Requirements

Bunkering and de-bunkering service to support Fuel CFAY US Naval Base Japan

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0002	Inspection and Acceptance Location Both Destination Instructions: Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: JPN DEFENSE DISTRIB CT YOKOSUKA JAP CALL COMM 81 311 743 8344 BLDG 5010, 1 BANCHI TOMARI CHO US NAVAL BASE YOKOSUKA 238-0001 JAPAN TBD, TBD Email: TBD Telephone: TBD
0003	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination

	Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0004	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0005	Inspection and Acceptance Location Both Other Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0006	Inspection and Acceptance Location Both Destination

	Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0007	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0008	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD

0009	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0010	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0011	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100

	FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0012	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0013	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0014	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government

	DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0015	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0016	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
0017	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination

	Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1001	Inspection and Acceptance Location Both Destination Instructions: Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1002	Inspection and Acceptance Location Both Destination Instructions: Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD

1003	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1004	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1005	Inspection and Acceptance Location Both Other Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES

	TBD, TBD Email: TBD Telephone: TBD
1006	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1007	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1008	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054

	CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1009	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1010	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1011	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government

	Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1012	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1013	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1014	Inspection and Acceptance Location

	Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1015	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD Email: TBD Telephone: TBD
1016	Inspection and Acceptance Location Both Destination Instructions: Inspect at Destination Inspect by Government Accept at Destination Accept by Government DoDAAC: N61054 CountryCode: USA COMMANDER FLEET ACT YOKOSUKA PSC 473 BOX 1, FPO AP 96349-1100 FPO, AP 96349-1100 UNITED STATES TBD, TBD

	Email: TBD Telephone: TBD

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Period of Performance
From 10 Apr 2026 to 09 Apr 2028

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 10 Apr 2026 To 09 Apr 2027	395,000 Barrel	
0002	Period of Performance From 10 Apr 2026 To 09 Apr 2027	30,000 Barrel	
0003	Period of Performance From 10 Apr 2026 To 09 Apr 2027	30 Hours	
0004	Period of Performance From 10 Apr 2026 To 09 Apr 2027	3 Job	
0005	Period of Performance From 10 Apr 2026 To 09 Apr 2027	1 Job	
0006	Period of Performance From 10 Apr 2026 To 09 Apr 2027	30 Job	
0007	Period of Performance From 10 Apr 2026 To 09 Apr 2027	50 Job	
0008	Period of Performance From 10 Apr 2026	10 Job	

	To 09 Apr 2027		
0009	Period of Performance From 10 Apr 2026 To 09 Apr 2027	1,200 Meter	
0010	Period of Performance From 10 Apr 2026 To 09 Apr 2027	2 Hours	
0011	Period of Performance From 10 Apr 2026 To 09 Apr 2027	2 Hours	
0012	Period of Performance From 10 Apr 2026 To 09 Apr 2027	2 Hours	
0013	Period of Performance From 10 Apr 2026 To 09 Apr 2027	2 Package	
0014	Period of Performance From 10 Apr 2026 To 09 Apr 2027	1 Job	
0015	Period of Performance From 10 Apr 2026 To 09 Apr 2027	29 Job	
0016	Period of Performance From 10 Apr 2026 To 09 Apr 2027	5,000 Barrel	
0017	Period of Performance From 10 Apr 2026 To 09 Apr 2027	1 Lot	
1001	Period of Performance From 10 Apr 2027 To 09 Apr 2028	395,000 Barrel	

1002	Period of Performance From 10 Apr 2027 To 09 Apr 2028	30,000 Barrel	
1003	Period of Performance From 10 Apr 2027 To 09 Apr 2028	30 Hours	
1004	Period of Performance From 10 Apr 2027 To 09 Apr 2028	3 Job	
1005	Period of Performance From 10 Apr 2027 To 09 Apr 2028	1 Job	
1006	Period of Performance From 10 Apr 2027 To 09 Apr 2028	30 Job	
1007	Period of Performance From 10 Apr 2027 To 09 Apr 2028	50 Job	
1008	Period of Performance From 10 Apr 2027 To 09 Apr 2028	10 Job	
1009	Period of Performance From 10 Apr 2027 To 09 Apr 2028	1,200 Meter	
1010	Period of Performance From 10 Apr 2027 To 09 Apr 2028	2 Hours	
1011	Period of Performance From 10 Apr 2027 To 09 Apr 2028	2 Hours	
1012	Period of Performance From	2 Hours	

	10 Apr 2027 To 09 Apr 2028		
1013	Period of Performance From 10 Apr 2027 To 09 Apr 2028	2 Package	
1014	Period of Performance From 10 Apr 2027 To 09 Apr 2028	1 Job	
1015	Period of Performance From 10 Apr 2027 To 09 Apr 2028	29 Job	
1016	Period of Performance From 10 Apr 2027 To 09 Apr 2028	5,000 Barrel	

Continuation of Accounting and Appropriation Data

ELECTRONIC FUND TRANSFER (EFT)

The Contractor must agree to receive payment by EFT. Transaction fee (currently JPY735) will be deducted by the Financial Institution (Bank of America) making payment. Additional fee may be imposed by the bank designated to receive payment.

Contract Clauses

FAR Clauses Incorporated by Reference

Number	**Title**	**Effective Date**	**Alternate/ Deviation**	**Variation Effective Date**
52.203-3	Gratuities.	Mar 1984		
52.204-18	Commercial and Government Entity Code Maintenance.	Jul 2020		
52.204-27	Prohibition on a ByteDance Covered Application.	May 2023		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Feb 2023		
52.229-12	Tax on Certain Foreign Procurements.	Jan 2021		
52.233-3	Protest after Award.	Jan 2026		
52.233-4	Applicable Law for Breach of Contract Claim.	Jan 2026		
52.204-13	System for Award Management-Maintenance.	Jan 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Jan 2026		
52.203-6	Restrictions on Subcontractor Sales to the Government.	May 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Oct 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Dec 2016		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	May 2020		
52.225-13	Restrictions on Certain Foreign Purchases.	Jan 2021		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	Apr 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Sep 2018		
52.233-4	Applicable Law for Breach of Contract Claim.	Sep 2004		

DFARS Clauses Incorporated by Reference

Number	**Title**	**Effective Date**	**Alternate/ Deviation**	**Variation Effective Date**
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Aug 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Nov 2022		
252.232-7010	Levies on Contract Payments.	Nov 2006		
252.243-7002	Requests for Equitable Adjustment.	Nov 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Oct 2023		
252.247-7023	Transportation of Supplies by Sea.	Sep 2024		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Dec 2022		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	Apr 2019		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Dec 2022		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Oct 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	Apr 2024		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Sep 2024		
252.225-7051	Prohibition on Acquisition of Certain Foreign Commercial Satellite Services.	Nov 2022		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	May 2023		

FAR Clauses Incorporated by Full Text

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. (Apr 2008)

Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)

(a) *Definitions*. As used in this clause-

*Postconsumer material*means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall-

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and

(2) Submit this estimate to Contracting Officer Representative and Contracting Officer.

(End of clause)

52.209-6 **Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.** **(Jan 2026)**

PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (FEB 2026)

(a) *Definition*. As used in this clause-

Commercially available off-the-shelf (COTS) item

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" in Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

(b) The Government suspends or debars Contractors to protect the Government's interests. Other than a subcontract for a commercially available off-the-shelf item, the Contractor shall not enter into any subcontract, in excess of the threshold specified in FAR 9.405-2(b) on the date of subcontract award, with a Contractor that is debarred, suspended, or proposed for debarment by any executive agency unless a compelling reason exists to do so.

(c) The Contractor shall require each proposed subcontractor whose subcontract will exceed the threshold specified in FAR 9.405-2(b) on the date of subcontract award, other than a subcontractor providing a commercially available off-the-shelf item, to disclose to the Contractor, in writing, whether as of the time of award of the subcontract, the subcontractor, or its principals, is or is not debarred, suspended, proposed for debarment, or voluntarily excluded by the Federal Government.

(d) A corporate officer or a designee of the Contractor shall notify the Contracting Officer, in writing, before entering into a subcontract with a party (other than a subcontractor providing a commercially available off-the-shelf item) that is debarred, suspended, proposed for debarment, or voluntarily excluded (see FAR 9.404 for information on the System for Award Management (SAM) Exclusions). The notice must include the following:

(1) The name of the subcontractor.

(2) The Contractor's knowledge of the reasons for the subcontractor being listed with an exclusion in SAM.

(3) The compelling reason(s) for doing business with the subcontractor notwithstanding its being listed with an exclusion in SAM.

(4) The systems and procedures the Contractor has established to ensure that it is fully protecting the Government's interests when dealing with such subcontractor in view of the specific basis for the party's debarment, suspension, proposed debarment, or voluntary exclusion.

(e) *Subcontracts*. Unless this is a contract for the acquisition of commercial products or commercial services, the Contractor shall include the requirements of this clause, including this paragraph (e) (appropriately modified for the identification of the parties), in each subcontract that-

(1) Exceeds the threshold specified in FAR 9.405-2(b) on the date of subcontract award; and

(2) Is not a subcontract for commercially available off-the-shelf items.

(End of clause)

52.212-4 **Terms and Conditions-Commercial Products and Commercial Services.** **(Jan 2026)**

TERMS AND CONDITIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026)

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance*. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment*. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S. C. 3727). However, when a third party makes payment (*e.g.,* use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment*-

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest*.
(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions*. The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss*. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes*. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Dec 2022)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

This section is intentionally left blank; all required information shall be specified in the corresponding on each Task Order

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	____
Issue By DoDAAC	____

Admin DoDAAC	____
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	____
Service Acceptor (DoDAAC)	____
Accept at Other DoDAAC	____
LPO DoDAAC	____
DCAA Auditor DoDAAC	____
Other DoDAAC(s)	____

*(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services. (Dec 2022)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)

(a) *Definitions*. As used in this clause-

"Covered defense telecommunications equipment or services" means-

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation, or any subsidiary or affiliate of such entities;

(2) Telecommunications services provided by such entities or using such equipment; or

(3) Telecommunications equipment or services produced or provided by an entity that the Secretary of Defense reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Covered foreign country" means-

(1) The People's Republic of China; or

(2) The Russian Federation.

"Covered missions" means-

(1) The nuclear deterrence mission of DoD, including with respect to nuclear command, control, and communications, integrated tactical warning and attack assessment, and continuity of Government; or

(2) The homeland defense mission of DoD, including with respect to ballistic missile defense.

"Critical technology" means-

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) *Prohibition*. In accordance with section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), the contractor shall not provide to the Government any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless the covered defense telecommunication equipment or services are covered by a waiver described in Defense Federal Acquisition Regulation Supplement 204.2104.

(c) *Procedures*. The Contractor shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service, to carry out covered missions, that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Reporting*.

(1) In the event the Contractor identifies covered defense telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, the Contractor shall report at *https://dibnet.dod.mil* the information in paragraph (d)(2) of this clause.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 30 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a covered defense telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

252.225-7056 Prohibition Regarding Business Operations with the Maduro Regime. (Dec 2022)

PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)

(a) *Definitions*. As used in this clause-

"Agency or instrumentality of the government of Venezuela" means an agency or instrumentality of a foreign state as defined in 28 U.S.C. 1603 (b), with each reference in section 1603(b) to a foreign state deemed to be a reference to Venezuela.

"Business operations" means engaging in commerce in any form, including acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

"Government of Venezuela" means the government of any political subdivision of Venezuela, and any agency or instrumentality of the government of Venezuela.

"Person" means-

(1) A natural person, corporation, company, business association, partnership, society, trust, or any other nongovernmental entity, organization, or group;

(2) Any governmental entity or instrumentality of a government, including a multilateral development institution (as defined in section 1701(c)(3) of the International Financial Institutions Act (22 U.S.C. 262r(c)(3)); and

(3) Any successor, subunit, parent entity, or subsidiary of, or any entity under common ownership or control with, any entity described in paragraph (1) or (2) of this definition.

(b) *Prohibition*. In accordance with section 890 of the National Defense Authorization Act for Fiscal Year 2020 (Pub. L. 116-92), DoD is prohibited from entering into a contract for the procurement of products or services with any person that has business operations with an authority of the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government, unless the person has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(c) The Contractor shall-

(1) Not have any business operations with an authority of the Maduro regime or the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government; or

(2) Have a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(d) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts, including subcontracts for the acquisition of commercial products.

(End of clause)

252.232-7003 Electronic Submission of Payment Requests and Receiving Reports. (Nov 2018)

ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018)

(a) *Definitions*. As used in this clause-

"Contract financing payment" means an authorized Government disbursement of monies to a contractor prior to acceptance of supplies or services by the Government.

(1) Contract financing payments include-

(i) Advance payments;

(ii) Performance-based payments;

(iii) Commercial advance and interim payments;

(iv) Progress payments based on cost under the clause at Federal Acquisition Regulation (FAR) 52.232-16, Progress Payments;

(v) Progress payments based on a percentage or stage of completion (see FAR 32.102(e)), except those made under the clause at FAR 52.232-5, Payments Under Fixed-Price Construction Contracts, or the clause at FAR 52.232-10, Payments Under Fixed-Price Architect-Engineer Contracts; and

(vi) Interim payments under a cost reimbursement contract, except for a cost reimbursement contract for services when Alternate I of the clause at FAR 52.232-25, Prompt Payment, is used.

(2) Contract financing payments do not include-

(i) Invoice payments;

(ii) Payments for partial deliveries; or

(iii) Lease and rental payments.

"Electronic form" means any automated system that transmits information electronically from the initiating system to affected systems.

"Invoice payment" means a Government disbursement of monies to a contractor under a contract or other authorization for supplies or services accepted by the Government.

(1) Invoice payments include-

(i) Payments for partial deliveries that have been accepted by the Government;

(ii) Final cost or fee payments where amounts owed have been settled between the Government and the contractor;

(iii) For purposes of subpart 32.9 only, all payments made under the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, and the clause at 52.232-10, Payments Under Fixed-Price Architect-Engineer Contracts; and

(iv) Interim payments under a cost-reimbursement contract for services when Alternate I of the clause at 52.232-25, Prompt Payment, is used.

(2) Invoice payments do not include contract financing payments.

"Payment request" means any request for contract financing payment or invoice payment submitted by the Contractor under this contract or task or delivery order.

"Receiving report" means the data prepared in the manner and to the extent required by Appendix F, Material Inspection and Receiving Report, of the Defense Federal Acquisition Regulation Supplement.

(b) Except as provided in paragraph (d) of this clause, the Contractor shall submit payment requests and receiving reports in electronic form using Wide Area WorkFlow (WAWF). The Contractor shall prepare and furnish to the Government a receiving report at the time of each delivery of supplies or services under this contract or task or delivery order. .

(c) Submit payment requests and receiving reports to WAWF in one of the following electronic formats:

(1) Electronic Data Interchange.

(2) Secure File Transfer Protocol.

(3) Direct input through the WAWF website.

(d) The Contractor may submit a payment request and receiving report using methods other than WAWF only when-

(1) The Contractor has requested permission in writing to do so, and the Contracting Officer has provided instructions for a temporary alternative method of submission of payment requests and receiving reports in the contract administration data section of this contract or task or delivery order;

(2) DoD makes payment for commercial transportation services provided under a Government rate tender or a contract for transportation services using a DoD-approved electronic third party payment system or other exempted vendor payment/invoicing system (e.g., PowerTrack, Transportation Financial Management System, and Cargo and Billing System);

(3) DoD makes payment on a contract or task or delivery order for rendered health care services using the TRICARE Encounter Data System; or

(4) The Governmentwide commercial purchase card is used as the method of payment, in which case submission of only the receiving report in WAWF is required.

(e) Information regarding WAWF is available at https://wawf.eb.mil/.

(f) In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(End of clause)

252.203-7003 Agency Office of the Inspector General. (Jul 2019)

203.1004

AGENCY OFFICE OF THE INSPECTOR GENERAL (AUG 2019)

The agency office of the Inspector General referenced in paragraphs (c) and (d) of FAR clause 52.203-13, Contractor Code of Business Ethics and Conduct, is the DoD Office of Inspector General at the following address:

Department of Defense Office of Inspector General Administrative Investigations Contractor Disclosure Program 4800 Mark Center Drive, Suite 14L25 Alexandria, VA 22350-1500

https://www.dodig.mil/Programs/Contractor-Disclosure-Program/

(End of clause)

252.211-7003 Item Unique Identification and Valuation. (Dec 2022)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions*. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at *https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html*.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at *https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html*.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is $5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
____	____
____	____
____	____

(ii) Items for which the Government's unit acquisition cost is less than $5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
____	____
____	____
____	____

(If items are identified in the Schedule, insert "See Schedule in this table.)

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier*.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item

identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at http://dodprocurementtoolbox.com/site/uidregistry/.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at http://dodprocurementtoolbox.com/site/uidregistry/; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	May 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Nov 2014		
52.225-14	Inconsistency between English Version and Translation of Contract.	Jan 2000		
52.232-37	Multiple Payment Arrangements.	Apr 1999		
52.232-39	Unenforceability of Unauthorized Obligations.	May 2013		
52.247-34	F.o.b. Destination.	Dec 1990		
52.229-6	Taxes-Foreign Fixed-Price Contracts.	Jan 2013		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations.	Jan 2026		
52.240-91	Security Prohibitions and Exclusions.	Jan 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2026		
52.203-17	Contractor Employee Whistleblower Rights.	Oct 2023		
52.204-9	Personal Identity Verification of Contractor Personnel.	Dec 2010		
52.204-91	Contractor Identification.	Jan 2026		
52.242-13	Bankruptcy.	Jun 1995		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Oct 2015		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Oct 2024		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	May 2020		
52.232-17	Interest.	Apr 2014		
52.233-1	Disputes.	Jan 2026		
52.233-1	Disputes. (Alternate I)	Jan 2026	Alternate I	Feb 2026
52.236-13	Accident Prevention.	Jan 2026		
52.236-13	Accident Prevention. (Alternate I)	Jan 2026	Alternate I	Nov 1991
52.242-15	Stop-Work Order.	Jul 1989		
52.246-4	Inspection of Services-Fixed-Price.	Jul 1996		
52.246-25	Limitation of Liability-Services.	Jan 1997		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.222-7002	Compliance with Local Labor Laws (Overseas).	May 1997		
252.225-7012	Preference for Certain Domestic Commodities.	Mar 2022		
252.225-7041	Correspondence in English.	May 1997		
252.225-7048	Export-Controlled Items.	May 2013		
252.243-7001	Pricing of Contract Modifications.	Nov 1991		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Jul 2024	Deviation 2024-O0014	Aug 2024
252.225-7976	Contractor Personnel Performing in Japan (DEVIATION 2018-O0019)	Jul 2018	Deviation 2018-O0019	Aug 2018
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Jan 2024	Deviation 2024-O0006	Feb 2024
252.225-7001	Buy American and Balance of Payments Program.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea. (Alternate I)	Sep 2024	Alternate I	Oct 2024
252.201-7000	Contracting Officer's Representative.	Nov 1991		
252.233-7001	Choice of Law (Overseas).	May 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Dec 2022		
252.204-7003	Control of Government Personnel Work Product.	Mar 1992		
252.232-7008	Assignment of Claims (Overseas).	May 1997		
252.225-7021	Trade Agreements.	Jan 2024		

FAR Clauses Incorporated by Full Text

52.252-2 Clauses Incorporated by Reference. (Jan 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR): https://www.acquisition.gov/browse/index/far

Department of Defense Federal Acquisition Regulation Supplement (DFARS): https://www.acquisition.gov/dfars

(End of clause)

52.232-34 Payment by Electronic Funds Transfer-Other than System for Award Management. (Jun 2013)

Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013)

(a) Method of payment.

(1) All payments by the Government under this contract shall be made by electronic funds transfer (EFT) except as provided in paragraph (a)(2) of this clause. As used in this clause, the term "EFT" refers to the funds transfer and may also include the payment information transfer.

(2) In the event the Government is unable to release one or more payments by EFT, the Contractor agrees to either-

(i) Accept payment by check or some other mutually agreeable method of payment; or

(ii) Request the Government to extend payment due dates until such time as the Government makes payment by EFT (but see paragraph (d) of this clause).

(b) Mandatory submission of Contractor's EFT information.

(1) The Contractor is required to provide the Government with the information required to make payment by EFT (see paragraph (j) of this clause). The Contractor shall provide this information directly to the office designated in this contract to receive that information (hereafter: "designated office") by the date when the contractor submit first invoice, using EFT Form established by DFAS . If not otherwise specified in this contract, the payment office is the designated office for receipt of the Contractor's EFT information. If more than one designated office is named for the contract, the Contractor shall provide a separate notice to each office. In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to the designated office(s).

(2) If the Contractor provides EFT information applicable to multiple contracts, the Contractor shall specifically state the applicability of this EFT information in terms acceptable to the designated office. However, EFT information supplied to a designated office shall be applicable only to contracts that identify that designated office as the office to receive EFT information for that contract.

(c) *Mechanisms for EFT payment*. The Government may make payment by EFT through either the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association, or the Fedwire Transfer System. The rules governing Federal payments through the ACH are contained in 31 CFR Part 210.

(d) Suspension of payment.

(1) The Government is not required to make any payment under this contract until after receipt, by the designated office, of the correct EFT payment information from the Contractor. Until receipt of the correct EFT information, any invoice or contract financing request shall be deemed not to be a proper invoice for the purpose of prompt payment under this contract. The prompt payment terms of the contract regarding notice of an improper invoice and delays in accrual of interest penalties apply.

(2) If the EFT information changes after submission of correct EFT information, the Government shall begin using the changed EFT information no later than 30 days after its receipt by the designated office to the extent payment is made by EFT. However, the Contractor may request that no further payments be made until the updated EFT information is implemented by the payment office. If such suspension would result in a late payment under the prompt payment terms of this contract, the Contractor's request for suspension shall extend the due date for payment by the number of days of the suspension.

(e) Liability for uncompleted or erroneous transfers.

(1) If an uncompleted or erroneous transfer occurs because the Government used the Contractor's EFT information incorrectly, the Government remains responsible for-

(i) Making a correct payment;

(ii) Paying any prompt payment penalty due; and

(iii) Recovering any erroneously directed funds.

(2) If an uncompleted or erroneous transfer occurs because the Contractor's EFT information was incorrect, or was revised within 30 days of Government release of the EFT payment transaction instruction to the Federal Reserve System, and-

(i) If the funds are no longer under the control of the payment office, the Government is deemed to have made payment and the Contractor is responsible for recovery of any erroneously directed funds; or

(ii) If the funds remain under the control of the payment office, the Government shall not make payment and the provisions of paragraph (d) shall apply.

(f) *EFT and prompt payment*. A payment shall be deemed to have been made in a timely manner in accordance with the prompt payment terms of this contract if, in the EFT payment transaction instruction released to the Federal Reserve System, the date specified for settlement of the payment is on or before the prompt payment due date, provided the specified payment date is a valid date under the rules of the Federal Reserve System.

(g) *EFT and assignment of claims*. If the Contractor assigns the proceeds of this contract as provided for in the assignment of claims terms of this contract, the Contractor shall require as a condition of any such assignment, that the assignee shall provide the EFT information required by paragraph (j) of this clause to the designated office, and shall be paid by EFT in accordance with the terms of this clause. In all respects, the requirements of this clause shall apply to the assignee as if it were the Contractor. EFT information that shows the ultimate recipient of the transfer to be other than the Contractor, in the absence of a proper assignment of claims acceptable to the Government, is incorrect EFT information within the meaning of paragraph (d) of this clause.

(h) *Liability for change of EFT information by financial agent*. The Government is not liable for errors resulting from changes to EFT information provided by the Contractor's financial agent.

(i) *Payment information*. The payment or disbursing office shall forward to the Contractor available payment information that is suitable for transmission as of the date of release of the EFT instruction to the Federal Reserve System. The Government may request the Contractor to designate a desired format and method(s) for delivery of payment information from a list of formats and methods the payment office is capable of executing. However, the Government does not guarantee that any particular format or method of delivery is available at any particular payment office and retains the latitude to use the format and delivery method most convenient to the Government. If the Government makes payment by check in accordance with paragraph (a) of this clause, the Government shall mail the payment information to the remittance address in the contract.

(j) *EFT information*. The Contractor shall provide the following information to the designated office. The Contractor may supply this data for this or multiple contracts (see paragraph (b) of this clause). The Contractor shall designate a single financial agent per contract capable of receiving and processing the EFT information using the EFT methods described in paragraph (c) of this clause.

(1) The contract number (or other procurement identification number).

(2) The Contractor's name and remittance address, as stated in the contract(s).

(3) The signature (manual or electronic, as appropriate), title, and telephone number of the Contractor official authorized to provide this information.

(4) The name, address, and 9-digit Routing Transit Number of the Contractor's financial agent.

(5) The Contractor's account number and the type of account (checking, saving, or lockbox).

(6) If applicable, the Fedwire Transfer System telegraphic abbreviation of the Contractor's financial agent.

(7) If applicable, the Contractor shall also provide the name, address, telegraphic abbreviation, and 9-digit Routing Transit Number of the correspondent financial institution receiving the wire transfer payment if the Contractor's financial agent is not directly on-line to the Fedwire Transfer System; and, therefore, not the receiver of the wire transfer payment.

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Oct 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR chapter 2_) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.240-93 Basic Safeguarding of Covered Contractor Information Systems. (Jan 2026)

BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (FEB 2026)

(a) Definitions. As used in this clause-

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information-

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) *Safeguarding requirements*.

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.216-4 Economic Price Adjustment-Labor and Material. (Dec 2016)

ECONOMIC PRICE ADJUSTMENT-LABOR AND MATERIAL (JAN 2017)

(a) The Contractor shall notify the Contracting Officer if, at any time during contract performance, the rate of pay for labor (including fringe benefits) or the unit prices for material shown in the Schedule either increase or decrease. The Contractor shall furnish this notice within 60 days after the increase or decrease, or within any additional period that the Contracting Officer may approve in writing, but not later than the date of final payment under this contract. The notice shall include the Contractor's proposal for an adjustment in the contract unit prices to be negotiated under paragraph (b) of this clause, and shall include, in the form required by the Contracting Officer, supporting data explaining the cause, effective date, and amount of the increase or decrease and the amount of the Contractor's adjustment proposal.

(b) Promptly after the Contracting Officer receives the notice and data under paragraph (a) of this clause, the Contracting Officer and the Contractor shall negotiate a price adjustment in the contract unit prices and its effective date. However, the Contracting Officer may postpone the negotiations until an accumulation of increases and decreases in the labor rates (including fringe benefits) and unit prices of material shown in the Schedule results in an adjustment allowable under paragraph (c)(3) of this clause. The Contracting Officer shall modify this contract (1)to include the price adjustment and its effective date and (2)to revise the labor rates (including fringe benefits) or unit prices of material as shown in the Schedule to reflect the increases or decreases resulting from the adjustment. The Contractor shall continue performance pending agreement on, or determination of, any adjustment and its effective date.

(c) Any price adjustment under this clause is subject to the following limitations:

(1) Any adjustment shall be limited to the effect on unit prices of the increases or decreases in the rates of pay for labor (including fringe benefits) or unit prices for material shown in the Schedule. There shall be no adjustment for-

(i) Supplies or services for which the production cost is not affected by such changes;

(ii) Changes in rates or unit prices other than those shown in the Schedule; or

(iii) Changes in the quantities of labor or material used from those shown in the Schedule for each item.

(2) No upward adjustment shall apply to supplies or services that are required to be delivered or performed before the effective date of the adjustment, unless the Contractor's failure to deliver or perform according to the delivery schedule results from causes beyond the Contractor's control and without its fault or negligence, within the meaning of the Default clause.

(3) There shall be no adjustment for any change in rates of pay for labor (including fringe benefits) or unit prices for material which would not result in a net change of at least 3 percent of the then-current total contract price. This limitation shall not apply, however, if, after final delivery of all line items, either party requests an adjustment under paragraph (b) of this clause.

(4) The aggregate of the increases in any contract unit price made under this clause shall not exceed 10 percent of the original unit price. There is no percentage limitation on the amount of decreases that may be made under this clause.

(d) The Contracting Officer may examine the Contractor's books, records, and other supporting data relevant to the cost of labor (including fringe benefits) and material during all reasonable times until the end of 3 years after the date of final payment under this contract or the time periods specified in subpart 4.7 of the Federal Acquisition Regulation (FAR), whichever is earlier.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year. (Mar 1984)

Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond 01 October of the applicable contract year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond 01 October of the applicable contract year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. (Alternate I) (Apr 2008) Alternate I (May 2008)

Alternate I (MAY 2008). As prescribed in 23.109(b)(2), redesignate paragraph (b) of the basic clause as paragraph (c) and add the following paragraph (b) to the basic clause:

(b) The Contractor shall execute the following certification required by the Resource Conservation and Recovery Act of 1976 (42 U.S.C. 6962(i)(2)(C)):

CERTIFICATION

I, ____(name of certifier), am an officer or employee responsible for the performance of this contract and hereby certify that the percentage of recovered material content for EPA-designated items met the applicable contract specifications or other contractual requirements.

____[Signature of the Officer or Employee]

____[Typed Name of the Officer or Employee]

____[Title]

____[Name of Company, Firm, or Organization]

____[Date]

(End of certification)

52.232-18 Availability of Funds. (Mar 1984)

AVAILABILITY OF FUNDS (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.216-18 Ordering. (Jul 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from during Period of Performance.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Sep 1995)

Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than 1,000 barrel, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of maximum quantity specified under each CLIN

(2) Any order for a combination of items in excess of maximum quantity specified under each CLIN

(3) A series of orders from the same ordering office within 2 (Two) days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.,* includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 2 (two) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Jan 2026)

Indefinite Quantity (Feb 2026)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 15 days.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (May 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition*. " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from *PGI Part 225 International Acquisition /PGI PGI 225.3 Contracts Performed outside the united states,*

(End of clause)

252.204-7023 Reporting Requirements for Contracted Services. (Alternate I) (Jun 2021) Alternate I (Jul 2021)

Alternate I. As prescribed in 204.1705(a)(i) and (iii), use the following clause, which substitutes "contract or agreement for each order" in lieu of "contract or order" in paragraph (b) and "order" in lieu of "contract or order" in paragraphs (c) and (c)(1) and (2), and identifies the dollar threshold and service acquisition portfolio groups for which orders under the contract or agreement require service contract reporting.

REPORTING REQUIREMENTS FOR CONTRACTED SERVICES-ALTERNATE I (JUL 2021)

(a) *Definition*. As used in this clause-

"First-tier subcontract" means a subcontract awarded directly by the contractor for the purpose of acquiring services for performance of a prime contract. It does not include the contractor's supplier agreements with vendors, such as long-term arrangements for materials or supplies or services that benefit multiple contracts and/or the costs of which are normally applied to a contractor's general and administrative expenses or indirect costs.

(b) The contractor shall report annually, by October 31, at *https://www.sam.gov*, on services performed during the preceding Government fiscal year (October 1 - September 30) under this contract or agreement for each order, including any first-tier subcontract, which exceeds $3 million for services in the following service acquisition portfolio groups:

(1) Logistics management services.

(2) Equipment-related services.

(3) Knowledge-based services.

(4) Electronics and communications services.

(c) The Contractor shall report the following information for the order:

(1) The total dollar amount invoiced for services performed during the preceding Government fiscal year under the order.

(2) The number of Contractor direct labor hours, to include first-tier subcontractor direct labor hours, as applicable, expended on the services performed under the order during the previous Government fiscal year.

(d) The Government will review the Contractor's reported information for reasonableness and consistency with available contract information. In the event the Government believes that revisions to the Contractor's reported information are warranted, the Government will notify the Contractor. Upon notification, the Contractor shall revise the reported information or provide the Government with a supporting rationale for the information.

(End of clause)

252.229-7001 Tax Relief. (Mar 2020)

TAX RELIEF-BASIC (APR 2020)

(a) Prices set forth in this contract are exclusive of all taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the Contractor's government. The following taxes or duties have been excluded from the contract price:

NAME OF TAX: *N/A*	RATE (PERCENTAGE): *N/A*

(b) Invoices submitted in accordance with the terms and conditions of this contract shall be exclusive of all taxes or duties for which relief is available. The Contractor's invoice shall list separately the gross price, amount of tax deducted, and net price charged.

(c) When items manufactured to United States Government specifications are being acquired, the Contractor shall identify the materials or components intended to be imported in order to ensure that relief from import duties is obtained. If the Contractor intends to use imported products from inventories on hand, the price of which includes a factor for import duties, the Contractor shall ensure the United States Government's exemption from these taxes. The Contractor may obtain a refund of the import duties from its government or request the duty-free import of an amount of supplies or components corresponding to that used from inventory for this contract.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

225-9401(4-22) SUPTXT225-9401(4-22) JAPANESE CONCILIATION PROCEDURES (Dec 2023)

JAPANESE CONCILIATION PROCEDURES

(a) Except as otherwise provided in this contract any disagreement arising under this contract which is not resolved by the parties to this contract may be submitted to the US-Japan Joint Committee for conciliation in accordance with paragraph 10, Article XVIII, of the Status of Forces Agreement under Article VI of the Treaty of Mutual Cooperation and Security between Japan and the United States of America. Request by the Contractor for conciliation shall be made in accordance with the procedures provided herein.

(b) In the event the Contractor desires conciliation after the decision of the Contracting Officer has been served upon him, he will first file his appeal from such findings of fact within the time limits described therein before filing request for conciliation with the Joint Committee and then request for appellate authority under the clause of this contract entitled Disputes to suspend its action on his appeal until such time as the Joint Committee has had an opportunity for effecting conciliation.

(c) The request for conciliation will be submitted by the Contractor through the nearest local Japanese Defense Facilities Administration Bureau to the Contract Conciliation Panel of the Joint Committee. Upon the filing of the request with the Joint Committee, the Contractor will immediately notify the Contracting Officer in writing that the request for conciliation has been filed.

(d) In the event the disagreement submitted to the Joint Committee under subparagraph (b) above has been resolved through conciliation, it will be the responsibility of the Contractor to notify the appellate authority designated in the clause of this contract, entitled Disputes, of the settlement of the dispute and to withdraw his appeal.

(e) In the event the Contractor who has submitted a request for conciliation to the Joint Committee under subparagraph (b) above desires, notwithstanding the pending request for conciliation, that action by the appropriate authority under the clause of this contract entitled Disputes be resumed on his appeal, it is his responsibility to so request the said authority in writing. The Joint Committee shall be immediately informed by the Contractor of his action taken hereunder.

(f) No request for conciliation can be submitted to the Joint Committee in the case of a dispute upon which the final decision of the appropriate authority under the clause of this contract entitled Disputes has been rendered. Pending the hearing of conciliation panel the Contractor shall proceed diligently with the performance of the contract and in accordance with the Contracting Officer's decision. The provisions of this local text shall not prejudice any right which the parties to the contract may have to file a civil suit.

216-9402(1-11) SUPTXT216-9402(1-11) ORAL ORDERS (INDEFINITE DELIVERY CONTRACTS) (Dec 2023)

ORAL ORDERS (INDEFINITE DELIVERY CONTRACTS)

Oral orders may be placed provided the following conditions are complied with:

(a) No oral order will exceed $350,000 or such lesser amount as may be specified elsewhere in the schedule of this contract.

(b) The Contractor will furnish with each shipment a delivery ticket, in triplicate, showing: contract number, order number under the contract; date order was placed, name and title of person placing order; an itemized listing of supplies or services furnished; unit price and extension of each item; and, delivery or performance date.

(c) Invoices for supplies or services furnished in response to oral orders will be accompanied with a received copy of each related delivery ticket.

(d) The ordering activity shall designate in writing the names of individuals authorized to place oral orders and will furnish a copy thereof to the Contractor.

(e) Written confirmation of oral orders will be issued as a means of documenting the oral order within 10 working days or oral orders will be confirmed twice a month, in writing, when more than one oral order is consolidated for a single confirmation.

203.1106-1(3-18) SUPTXT 203.1106-1 (3-18) NAVY USE OF ABILITYONE SUPPORT CONTRACTOR - RELEASE OF OFFEROR INFORMATION (Dec 2023)

NAVSUP FLC Yokosuka may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the Government or information already in the possession of the Government may be viewed and utilized by the AbilityOne Program support contractor personnel during the c ourse of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data/information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the Government's AbilityOne Program support contractor personnel in order to perform close out services. Prior to the release of any such information to the support contractor, the support contractor will have in place with the Government a Non-Disclosure/Non-Use Agreement in accordance with the terms of the AbilityOne Program support contract.

Offerors may execute their own Non-Disclosure Agreement with the AbilityOne Program (AbilityOne contact information available from the contracting point of contact). The support contractor must provide copies of the executed agreements to the Contracting Officer and the Contracting Officer's Representative (COR) for the support contract; and the offeror/contractor for this acquisition must provide copies of the executed Agreement to the Contracting Officer for this acquisition. If the offeror/contractor seeks such a Non-Disclosure Agreement with the AbilityOne Program support contractor, the Agreement must be executed no later than the date of final delivery under the resulting NAVSUP FLC Yokosuka contract.

204-9400(4-22) SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION (Dec 2023)

The security text does not apply in cases where the contractor/vendor does not have access to or use NMCI computers, is not issued a CAC, and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United. States. Nationals (foreign nationals) who are contactor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible, and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search, and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC Credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DODM) 5200.2, Department of Defense (DoD) Components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

Contractor Unclassified Access to Federally Controlled Facilities, Sensitive Information, Information Technology (IT) Systems or Protected Health Information

Executive Order 13467, Reforming Processes Related to Suitability for Government Employment, Fitness for Contractor Employees, and Eligibility for Access to Classified National Security Information, and Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this local text will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at https://jkodirect.jten.mil/pdf/atl1/launch.html; or

2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or

3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at https://securityawareness.usalearning.gov/opsec/index.htm.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

a. OF-306 signed by contractor employee

b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)

c. Completed Electronic Investigation (e-QIP)

d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.

e. Common Access Card (CAC)

f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services, and no reimbursement will be paid by the Government for efforts expended

during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEMS

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e. g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy Information Technology resources. The decision to authorize access to a government IT system /network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officer's Representative (COR) shall sign the SAAR-N as the "supervisor".

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The Command's Security Manager may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this local text including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this local text in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.

b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.

c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information

d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the Contractor's Security Representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Contractor's Security Representative. The Contractor's Security Representative shall be the primary point of contact on any security matter. The Contractor's Security Representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc. ...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a US citizen or a US permanent resident with a minimum of 3 years of legal residency in the United States (as required by The Deputy Secretary of Defense DTM 08-006 or its subsequent DoD instruction) and
- Must have a favorably completed T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the Contractor's Security Representative must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)
- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably T1 or equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

243-9400(1-92) SUPTXT243-9400(1-92) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER (Dec 2023)

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

NAVSUP Fleet Logistics Center (FLC) Yokosuka Contracting Department (Code 200) Warranted Contracting Officers.

List of Contract Documents, Exhibits, or Attachments

Attachment I Appendix A_MIL-STD-3004-1C

Attachment II PPI

Attachment III Financial Info Data Sheet

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Jul 2020		
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Oct 2021		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Jan 2026		
52.209-7	Information Regarding Responsibility Matters.	Sep 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Aug 2022		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Feb 2023		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Sep 2016		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	May 2023		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Jan 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026)

(a) *Definitions*. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.209-12 Certification Regarding Tax Matters. (Sep 2025)

CERTIFICATION REGARDING TAX MATTERS (OCT 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed $7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not ☐, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Nov 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions*. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation*. The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (Apr 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7055 Representation Regarding Business Operations with the Maduro Regime. (Apr 2022)

REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (MAY 2022)

(a) *Definitions*. As used in this provision-

"Agency or instrumentality of the government of Venezuela," "business operations," "government of Venezuela," and "person" have the meaning given in the clause 252.225-7056, Prohibition Regarding Business Operations with the Maduro Regime, of this solicitation.

(b) *Prohibition*. In accordance with section 890 of the National Defense Authorization Act for Fiscal Year 2020 (Pub. L. 116-92), DoD is prohibited from entering into a contract for the procurement of products or services with any person that has business operations with an authority of the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government, unless the person has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(c) *Representation*. By submission of its offer, the Offeror represents that the Offeror is a person that-

(1) Does not have any business operations with an authority of the Maduro regime or the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government; or

(2) Has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

SPECIAL NOTE

This solicitation is intended only for sources duly authorized to operate and do business in Japan as Prime Contractor as prescribed by DFARS 225.1103(3).
Prime Contractor (Quoter) may be required to submit additional documentation such as evidence of proper clearance with the Japanese Immigration Bureau demonstrating their ability to perform in Japan prior to award.
Prime Contractor (Quoter) are reminded of the requirements associated with subcontracting with contractors that are debarred, suspended or proposed for debarment contained at FAR 52.209-6.

As with all FAR and DFARS requirements, please ensure you are familiar with those requirements prior to submitting your quote.

MINIMUM AND MAXIMUM QUANTITIES

To meet the intent of FAR 52.216-22 Indefinite Quantity Clause, the Contractor shall furnish to the Government, when and if ordered, the supplies or services specified as maximum in the schedule below, and the Government shall order at least the quantity of supplies or services designated as the minimum. The quantities shown in each CLINs are only estimates. The exact quantities for delivery are not known at the time of award:

Minimum: 1,000bbls for Fuel
Maximum: See each CLINs

(Maximum quantity :790,000 barrels (Base Year I: 395,000 barrels and Base Year II: 395,000 barrels)

Addendum for 52.212-1 Instructions to Offerors--Commercial Products and Commercial Services.

SUBMISSION OF QUOTE:

All documents shall be written in English or have English Translation.

Quotes shall be submitted electronically via email to the following personnel no later than the date and time specified in Block 8 of the SF1449. E-mails (including attachments) near or greater than 10 megabytes in size may not be received due to system limitations. It is the responsibility of the quoter to confirm receipt of quote.

(1) yoko.yamaguchi.ln@us.navy.mil
(2) cynthia.k.gama.civ@us.navy.mil
(3) mariacrispina.c.mallari2.ln@us.navy.mil

The quoter is required to submit a quote in the following quantities:

(1) Solicitation (No. N6264926QB001) - One copy
(A) Signed cover page of this solicitation (complete blocks 17a, 30a through 30c), with acknowledgement of all amendments (cover page of all SF30 with competed block 8, 15a through 15c) if applicable.

(B) Provide proposed price (unit price and maximum amount) for all CLINs.

Provide total amount for all CLINs. (See Continuation of Supplies or Services and Prices/Costs for detail)

(2) Past Performance Information (Attachment II) - One (1) copy for each PPI

(3) Financial data

(A) The latest balance sheet, profit and loss statement of the offeror - One copy
(B) Completed "Financial Information Data Sheet" (Attachment III) of this solicitation - One copy

(4) Technical quote
Copy of formal vessel/barge specification sheet, "Senpaku Meisai" and any other official documents that demonstrate ability to meet the requirements described in PWS section 1.2 (b)(c) (d) for all barges. - One copy

REQUEST FOR CLARIFICATION

Quoter may request clarification of any specification or contract term. No verbal requests for information will be accepted by the Contracting Officer or his/her Technical Representative. Quoter's questions must be submitted to the following personnel in writing via email by Close of Business by 10:00AM, 19 February 2026 (Thursday) (Japan Standard time (JST). All questions and answers will be submitted via an amendment to the original solicitation.

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Jan 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026)

(a) The Government will award a contract resulting from this solicitation to the responsible quoter whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate quotes:

Evaluation Factors:

1. Technical Capabilities

2. Price

3. Past Performance

Technical Capability determination is significantly more important than price and past performance. Price is then significantly more important than past performance.

Evaluation of Technical Government will evaluate the quoter's vessels and/or barges in accordance with the following PWS paragraph1.2 (b), (c) and (d).

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*(b) The Contractor shall be licensed to carry the following clean petroleum products: NATO F76 and F44 (JP5). Such a ship shall comply with the existing Japanese safety and environmental laws and regulations.

*(c) The Contractor shall use a ship with cargo tanks that are appropriately coated, are prepared to comply with Appendix A, and are otherwise acceptable to receive the cargo identified in the Customer's order. Barges offered for consideration that are constructed of either stainless steel or carbon steel that has been epoxy coated with a non-coal tar-based grade of epoxy, or uncoated mild steel tanks are acceptable for performance consideration as stated in this contract. The use of copper and copper alloys (brass, bronze, etc.) in vessel compartments, pipelines, heating coils, and fittings is not permitted.

*(d) The Contractor shall provide suitable and operable barge(s) and be capable of providing equivalent to 3 barges with 500.00 kl tank capacity each and 3 barges with 300.00 kl tank capacity each per task order to cover the maximum requirement of 2,400 kl delivery per day.

Contractor will first be evaluated for technical certification. If the contractor is determined uncertified (in accordance with PWS) in the required areas they will no longer be evaluated for price and past performance.

They will not be eligible for award if they are not determined technical capable.

RATING	DESCRIPTION
ACCEPTABLE	Quotation meets the requirements of the solicitation.
UNACCEPTABLE	Quotation does not meet the requirements of the solicitation.

Evaluation of Price:

The price(s) quoted in response to the solicitation will be evaluated through price analysis to determine price reasonableness.

The Government will evaluate quotes using the quoters' total evaluated price, which is determined by adding the max amount for all CLINs.

Evaluation of Past Performance Information (PPI):

Quoter shall provide three (3) past performance records which include sufficient information to determine the Recency, Relevancy, and Quality of the work performed. In assigning the Past Performance Rating, the Government will evaluate the Recency, Relevancy, and Quality of Past Performance Information.

Recency:

In order to be determined Recent, PPI shall be for work completed within three (3) years from the date the solicitation was issued. PPI determined to be not within the Recency threshold will be given a Neutral rating and be considered for further evaluation.

Relevancy:

In order to be determined Relevant, PPI shall be for work that is same or similar services as described in the PWS for this solicitation. The PPI may be for work provided to the general public, the U.S. Government, and/or the Government of Japan. PPI determined to be not within the Relevancy threshold will be given a Neutral rating and be considered for further evaluation.

Rating	Definition
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Quality of Products or Services:

In order to determine the Quality of PPI, the Government will review responses to questionnaires sent to the quoter's customers, and any other source of PPI available to the Government evaluators. The Government's evaluation will consider the following areas:

Quality of services: Determine if the quoter has complied with contract requirements in terms of standards of good workmanship and services.

Timeliness of performance: Determine if the quoter has complied with contract performance.

Customer satisfaction: Determine if the quoter has satisfied its clients and provided general businesslike concern.

Performance Confidence Assessment Rating:

The result of the Past Performance evaluation is a Performance Confidence Assessment Rating assignments which reflect the Government's confidence that the quoter will successfully perform the solicitation's requirements based on the quoter's recent and relevant past performance record. The Government reserves the right to consider any other source of recent and relevant PPI available to Government evaluators as part of this assessment.

Rating	Rating Description

Satisfactory Confidence	Based on the quoter's recent/relevant performance record, the Government has a reasonable expectation that the quoter will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the quoter's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The quoter may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the quoter's recent/relevant performance record, the Government has a low expectation that the quoter will successfully perform the required effort.
No Confidence	Based on the quoter's recent/relevant performance record, the Government has no expectation that the will be able to successfully perform the required effort.

NOTE: In the case of quoters for which there is no information on past contract performance or where past contract performance information is not available, the quoter may not be evaluated favorably or unfavorably on the factor of past contract performance (see FAR 15.305(a)(2)(iv).) In this case, the quoter's past performance is unknown and assigned a performance confidence rating of "neutral."

(b) Options. (Not applicable)

(c) A written notice of award or acceptance of a quote, mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the quote, shall result in a binding contract without further action by either party. Before the quote's specified expiration time, the Government may accept a quote (or part of a quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Determination of responsibility:

FAR Part 9.103(a) states that purchases shall be made from, and contracts shall be awarded to responsible contractor only. FAR Part 9.103(b) stipulates that no purchase or award shall be made unless the Contracting Officer makes an affirmative determination of responsibility. In making a responsibility determination, the standards at FAR 9.104-1 will be considered. The Contracting Officer reserves the right to request adequate evidence of responsibility on the part of the quoter or any quoted subcontractor; communications with quoter regarding responsibility issues may take place at any time during the evaluation process. This may include a Pre-award Survey as defined in FAR 9.106. The quotation submitted by the responsible quoter is evaluated price factor stated at Evaluation of Price in this section.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-22	Alternative Line Item Proposal.	Dec 2016		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	May 2020		
52.222-50	Combating Trafficking in Persons.	Jan 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications.	Jan 2026		
52.233-2	Service of Protest.	Jan 2026		
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Aug 2024		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Dec 2016		
52.223-4	Recovered Material Certification.	Apr 2008		
52.204-7	System for Award Management-Registration.	Jan 2026		
52.222-50	Combating Trafficking in Persons.	Oct 2021		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7031	Secondary Arab Boycott of Israel .	May 2005		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Dec 2022		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Mar 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Jul 2024	Deviation 2024-O0014	Aug 2024
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jul 2022		

FAR Clauses Incorporated by Full Text

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I) (Apr 2024) Alternate I (Feb 2024)

Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

52.252-1 Solicitation Provisions Incorporated by Reference. (Jan 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR): https://www.acquisition.gov/browse/index/far

Department of Defense Federal Acquisition Regulation Supplement (DFARS): https://www.acquisition.gov/dfars

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (May 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Oct 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.204-17 Ownership or Control of Offeror. (Jul 2020)

OWNERSHIP OR CONTROL OF OFFEROR (AUG 2020)

(a) Definitions. As used in this provision-

Commercial and Government Entity (CAGE) code means-

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates "has" in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code: ____

Immediate owner legal name: ____

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity?: ☐ Yes or ☐ No.

(d) If the Offeror indicates "yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____

Highest-level owner legal name: ____

(Do not use a "doing business as" name)

(End of provision)

52.204-90 Offeror Identification. (Jan 2026)

OFFEROR IDENTIFICATION (FEB 2026)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (https://www.sam.gov) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) *Definitions*. As used in this provision-

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to https://www.sam.gov to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification*. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: ____;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) *Common parent.*

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: ____

TIN: ____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S. C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is…	**Then…**
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil
Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www. nato.int/structur/ac/135/about/contacts)
Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int /AC135Public/scage/CageList.aspx)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-

(i) Its immediate owner(s), if any;

(ii) Its highest-level owner, if any; and

(iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate owner	____	____
Highest-level owner	____	____
Predecessor*	____	____

* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification. (Jan 2026)

EXEMPTION FROM APPLICATION OF THE SERVICE CONTRACT LABOR STANDARDS TO CONTRACTS FOR CERTAIN SERVICES-CERTIFICATION (FEB 2026)

(a) The offeror must check the following certification:

Certification

The offeror ☐ does ☐ does not certify that-

(1) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(2) The contract services are furnished at prices that are, or are based on, established catalog or market prices. An "established catalog price" is a price included in a catalog, price list, schedule, or other form that is regularly maintained by the manufacturer or the offeror, is either published or otherwise available for inspection by customers, and states prices at which sales currently, or were last, made to a significant number of buyers constituting the general public. An "established market price" is a current price, established in the usual course of ordinary and usual trade between buyers and sellers free to bargain, which can be substantiated from sources independent of the manufacturer or offeror;

(3) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(4) The offeror uses the same compensation (wage and fringe benefits) plan for all service employees performing work under the contract as the offeror uses for these employees and for equivalent employees servicing commercial customers.

(b) Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services. If the offeror certifies to the conditions in paragraph (a) of this provision, and the Contracting Officer determines in accordance with FAR 22.1002-1(f)(3) that the Service Contract Labor Standards statute-

(1) Will not apply to this offeror, then the Service Contract Labor Standards clause in this solicitation will not be included in any resultant contract to this offeror; or

(2) Will apply to this offeror, then the clause at FAR 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements, in this solicitation will not be included in any resultant contract awarded to this offer, and the offeror may be provided an opportunity to submit a new offer on that basis.

(c) If the offeror does not certify to the conditions in paragraph (a) of this provision-

(1) The clause of this solicitation at 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements, will not be included in any resultant contract to this offeror; and

(2) The offeror must notify the Contracting Officer as soon as possible if the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation.

(d) The Contracting Officer may not make an award to the offeror, if the offeror fails to execute the certification in paragraph (a) of this provision or to contact the Contracting Officer as required in paragraph (c) of this provision.

(End of provision)

52.226-3 Disaster or Emergency Area Representation. (Oct 2007)

DISASTER OR EMERGENCY AREA REPRESENTATION (NOV 2007)

(a) *Set-aside area.* The area covered in this contract is: ____________[Contracting Officer to fill in with definite geographic boundaries.]

(b) *Representations.* The offeror represents that it ☐ does ☐ does not reside or primarily do business in the designated set-aside area.

(c) An offeror is considered to be residing or primarily doing business in the set-aside area if, during the last twelve months-

(1) The offeror had its main operating office in the area; and

(2) That office generated at least half of the offeror's gross revenues and employed at least half of the offeror's permanent employees.

(d) If the offeror does not meet the criteria in paragraph (c) of this provision, factors to be considered in determining whether an offeror resides or primarily does business in the set-aside area include-

(1) Physical location(s) of the offeror's permanent office(s) and date any office in the set-aside area(s) was established;

(2) Current state licenses;

(3) Record of past work in the set-aside area(s) (*e.g.,* how much and for how long);

(4) Contractual history the offeror has had with subcontractors and/or suppliers in the set-aside area;

(5) Percentage of the offeror's gross revenues attributable to work performed in the set-aside area;

(6) Number of permanent employees the offeror employs in the set-aside area;

(7) Membership in local and state organizations in the set-aside area; and

(8) Other evidence that establishes the offeror resides or primarily does business in the set-aside area. For example, sole proprietorships may submit utility bills and bank statements.

(e) If the offeror represents it resides or primarily does business in the set-aside area, the offeror shall furnish documentation to support its representation if requested by the Contracting Officer. The solicitation may require the offeror to submit with its offer documentation to support the representation.

(End of provision)

52.209-2 Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Jan 2026)

PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (FEB 2026)

(a) *Definitions*. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation*. The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.203-2 Certificate of Independent Price Determination. (Mar 1985)

CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)
(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation. (Sep 2020)

COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)
(1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.216-1 Type of Contract. (Jan 2026)

Type of Contract (Feb 2026)

The Government contemplates award of an Indefinite Delivery Indefinite Quantity (IDIQ) Single Award Contract with Firm-Fixed-Prices Line Items contract resulting from this solicitation.

(End of provision)

52.225-17 Evaluation of Foreign Currency Offers. (Jan 2000)

Evaluation of Foreign Currency Offers (Feb 2000)

If the Government receives offers in more than one currency, the Government will evaluate by converting the foreign currency to United States currency using

Budget Exchange Rate (BER)* of applicable contract year in effect as follows:

in effect as follows:

(a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.

(b) For acquisitions conducted using negotiation procedures-

(1) On the date specified for receipt of offers, if award is based on initial quotation; otherwise

(2) On the date specified for receipt of quotation revisions.

*FY26 (1 Oct 2025 through 30 Sep 2026) BER: JPY150.4415/USD1.00

FY27 (1 Oct 2026 through 30 Sep 2027) BER: To be determined

(End of provision)

DFARS Clauses Incorporated by Full Text

252.225-7000 Buy American--Balance of Payments Program Certificate. (Jan 2024)

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions*. "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
____	____
____	____
____	____

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
____	____	____
____	____	____
____	____	____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number ____

[List as necessary]

(End of provision)